THE TRUSTEES FOR THE TIME BEING OF LAKESHORE 2000 TRUST
versus
WARWICKSHIRE (PRIVATE) LIMITED
and
NICHOLAS NYANDORO
and
TIMOTHY MICHEAL JOHNSON
and
REGISTRAR OF DEEDS N.O.
and
MINISTER OF LANDS, AGRICULTURE, FISHERIES, WATER AND RURAL DEVELOPMENT
and
MINISTER OF LOCAL GOVERNMENT AND PUBLIC WORKS
and
REGISTRAR OF COMPANIES
and
SHERIFF OF THE HIGH COURT

HIGH COURT OF ZIMBABWE
MAMBARA J
HARARE; 14 and 15 July 2026

Special plea

W P Mandinde, for the plaintiff
S M Hashiti, for the 1st to 3rd defendants
No appearance for the 4th to 8th defendants

MAMBARA J:

Background

[1] This is a judgment on special pleas raised by the first to third defendants against an action instituted by the plaintiff. In its summons and declaration, the plaintiff seeks, in substance, cancellation of Deed of Transfer No. 3919/86 registered in favour of the first defendant, the eviction of the first defendant and all those claiming occupation through it from the land known as Warwick in the district of Salisbury, and costs. The consolidated record shows that appearance to defend was entered, the first to third defendants filed special pleas in bar and

abatement, the plaintiff replicated, heads of argument were filed on both sides, and the matter was set down on the opposed roll for hearing.

[2] The special pleas as pleaded were fivefold: dirty hands; no *locus standi* / no cognizable cause of action; *res judicata*; prescription; and mootness. In replication, the plaintiff denied the pleas, asserted that its membership details and supporting documents would be furnished at discovery, stated that some of its members had been issued with offer letters, denied that the matter was *res judicata*, denied prescription, and denied mootness. Those are the pleadings upon which the issues fall to be determined.

[3] At the hearing, Mr *Mandinde* raised a point *in limine* based on r 42(3) of the High Court Rules, 2021, contending that the excipient ought first to have delivered a letter of complaint allowing twelve days before filing the special plea. Mr *Hashiti* opposed the point and argued, correctly in my view, that the rule relied upon does not govern special pleas. That point must be determined first because, if it were sound, it would be dispositive of the hearing.

The point *in limine* on rule 42

[4] The plaintiff's own heads of argument reproduced r 42(3) in these terms:

> "Before filing any exception to a pleading or making a court application to strike out any portion of a pleading on any grounds, the party complaining of any pleading shall, within the time allowed for filing a subsequent pleading, by written letter to his or her opponent state the nature of his or her complaint and call upon the other party to remove the cause of the complaint within twelve days of the complaint."

[5] The language of that subrule is plain. It deals with two procedural devices and two only: first, an exception to a pleading; second, a court application to strike out any portion of a pleading. It does not mention a plea, a special plea, or a plea in bar and abatement. Where the wording of a rule is clear, a court is not entitled to enlarge it by judicial interpolation. The omission of special pleas from r 42(3) is therefore deliberate in effect and must be respected.

[6] That conclusion is also consistent with the well-known distinction in civil pleading between a plea, an exception, a special plea, and an application to strike out. An exception attacks a pleading ex facie for disclosing no cause of action or for being vague and embarrassing. An application to strike out targets scandalous, vexatious or irrelevant matter. A special plea, by contrast, raises a threshold bar to the continuation of the action — for

example, want of *locus standi*, *res judicata*, prescription, *lis pendens*, or jurisdiction. The function of r 42(3) is to afford an opponent an opportunity to cure a complaint of the sort that is curable by amendment or excision before an exception or strike-out is launched. It is not a condition precedent to a litigant raising a threshold defence in the form of a special plea.

[7] Indeed, the plaintiff's argument collapses under the very wording of the rule on which it relies. A litigant cannot be required, under cover of r 42(3), to write ahead and give twelve days for the removal of *res judicata*, or the removal of an alleged want of *locus standi*, as though those were objectionable sentences capable of deletion from a pleading. Those are substantive bars. They go to the competence of the suit and not merely to the form of the pleading.

[8] The point *in limine* was therefore misconceived. Whether one characterises the special plea under the taxonomy of r 41 or under the structure of r 42(1), as counsel debated, r 42(3) remains textually confined to exceptions and applications to strike out. It does not regulate special pleas. The preliminary objection accordingly fails.

Locus standi and cognizable cause of action

[9] I turn to the substance. The plaintiff's declaration alleges that it is "a duly registered Trust" and gives an address for service. What it does not plead is equally important. It does not plead that the trust itself holds title to the land; it does not plead that the trust itself holds an offer letter, permit, lease, sale agreement, settlement lease, or any other juridical source of occupation or entitlement in respect of Warwick. Instead, its own declaration states that, during the relevant period, "members of the Plaintiff" who were in occupation had applied for offer letters. In replication, the plaintiff goes further and admits that "some members of the plaintiff have been issued with offer letters."

[10] That pleading is fatal to the plaintiff's standing. Our law has long insisted that a litigant establish a direct and substantial interest, or in action proceedings a pleaded right, entitling it to the relief sought. The defendants' heads correctly relied on authorities such as *Patz* v *Greene & Co* 1907 TS 427, *Adler* v *Salisbury City Council* 1947 (2) SA 220 (SR), and *Stevenson* v *Minister of Local Government and National Housing & Ors* 2001 (1) ZLR 321

(H), affirmed 2002 (1) ZLR 498 (S), for the proposition that standing depends on a legal interest personal to the litigant seeking relief.

[11] The plaintiff sought to avoid that defect by saying in replication that details of its membership and supporting documents would be provided "during discovery stage." That is no answer. Discovery is not a substitute for pleading. A party must plead the facts necessary to sustain its cause of action. It cannot commence proceedings first and postpone the jurisdictional facts of its own standing to a later stage. Put differently, a litigant who does not plead a right cannot repair that omission by promising discovery.

[12] Nor does the assertion that some unnamed members hold offer letters assist the plaintiff. The authority cited by the plaintiff itself — *Commercial Farmers Union and Ors* v *Minister of Lands and Rural Settlement & Ors* SC 31-10 — was invoked for the proposition that a holder of an offer letter, permit or land settlement lease has *locus standi* to sue for eviction. That proposition, even taken at its highest for the plaintiff, assists only an actual holder of such right. It does not transform personal rights allegedly held by unnamed third parties into rights of the plaintiff trust. The plaintiff did not plead the identity of those members, did not plead the terms of the alleged authorisation under which it sues on their behalf, and did not plead the juridical bridge by which their purported rights vest in the trust. On its pleaded case, therefore, the rights lie elsewhere.

[13*]* Mr *Hashiti* was right to submit that the plaintiff failed both to identify its legal right and to disclose the nexus between itself and the land, or between itself and the defendants, sufficient to entitle it to the declaratory and consequential relief claimed. The replication, far from curing the defect, accentuates it. Once the plaintiff admits that some of its members — and not the plaintiff itself — were issued with offer letters, it becomes plain that the plaintiff has not pleaded its own right. That means the action is not merely weak on the merits; it is incompetent at inception.

[14] I therefore uphold the special plea of no *locus standi* / no cognizable cause of action. On that ground alone, the action cannot stand.

Res *judicata* and the effect of prior orders

[15] Lest I be wrong on *locus standi*, the plea of *res judicata* is also well taken. The first to third defendants pleaded that the present dispute had already been resolved by extant court orders, and in their heads they specifically referred to prior judgments in HC10089/13, HC5513/18 and HCHACC60/22, as well as an extant eviction order in HRE-C-CG10784/19, which they said binds the plaintiff and its members. The plaintiff's response was a bare denial together with a general assertion that the parties and disputes were different, and that an appeal was pending in High Court App 30/24.

[16] The principles governing res judicata and issue estoppel are settled. In *Wolfenden* v *Jackson* 1985 (2) ZLR 313 (S), the Supreme Court reaffirmed the need for finality in litigation. In *Chimpondah & Anor* v *Muvami* 2007 (2) ZLR 326 (H), the court stressed that litigants are not permitted to plough over the same ground hoping for a different result. The defendants' heads also correctly invoked *Kassim* v *Kassim* 1989 (3) ZLR 234 (H), with its reliance on *Firestone South Africa (Pty) Ltd* v *Genticuro A*G 1977 (4) SA 298 (A), for the functus officio principle, and *Tonderai Titus Madanha* v *Chief Superintendent Chimwanza & The Commissioner of Police* HB 68/07 for the proposition that courts follow extant decisions unless set aside through lawful process.

[17] Those principles matter here for two related reasons. First, a litigant cannot use a fresh action to re-open questions already settled by a competent court. Second, one High Court judge cannot, under cover of a new action, make an order that collides with or neutralises an extant order of another court of competent jurisdiction. The heads filed by the defendants relied, in that regard, on authorities such as *Unitrack (Pvt) Ltd* v *TelOne* SC 10/18 and C v C SC 2/14, both of which underscore the imperative of obedience to extant orders until they are varied or set aside by proper process.

[18] The present action invites exactly the type of collateral challenge the law forbids. The plaintiff seeks cancellation of title, declarations concerning the status of the land, and consequential eviction relief, in circumstances where the defendants have pleaded prior definitive orders touching the same property, the same occupation, and the same contest over entitlement. The plaintiff's response did not meaningfully particularise why the alleged

differences in parties or cause of action destroy the plea. A bare statement that the parties are different is not enough. Where a plea of issue estoppel is raised, the court looks to substance, not labels.

[19] Equally unavailing is the plaintiff's reliance on a pending appeal. An order of court remains operative and binding unless and until it is stayed, rescinded, varied or set aside. The mere existence of an appeal or intended challenge does not erase the present legal consequences of an extant judgment. That proposition is consistent with the principle cited in the defendants' heads from *Econet Wireless (Private) Limited* v *The Minister of Public Service Labour and Social Welfare & Ors* SC 31/16: an order has legal consequences until properly upset.

[20] In my view, therefore, the plea of res judicata, at the very least in its broader form of issue estoppel, succeeds. The plaintiff cannot litigate afresh, by artful re-packaging, matters already concluded by previous orders that remain extant.

Disposition and costs

[21] In light of the conclusions I have reached on *locus standi* and *res judicata*, it is unnecessary to decide the further pleas of dirty hands, prescription, and mootness. I say no more about them lest I trespass into issues not required for decision. It is enough to hold that the plaintiff's action is barred and cannot proceed to the merits.

[22] The defendants asked for costs on a punitive scale. I am not persuaded that such an order is warranted. The plaintiff's case is legally unsustainable, and its procedural point under r 42(3) was wholly unmeritorious; however, the interests of justice are adequately served by an award of costs on the ordinary scale.

[23] In the result, the following order is made:

It is ordered that:

1. The plaintiff's point *in limine* based on r 42(3) of the High Court Rules, 2021 be and is hereby dismissed.

2. The first to third defendants' special plea of no *locus standi* / no cognizable cause of action be and is hereby upheld.
3. The first to third defendants' special plea of *res judicata* / issue estoppel be and is hereby upheld.
4. The plaintiff's claim be and is hereby dismissed.
5. The plaintiff shall pay the first to third defendants' costs of suit on the ordinary scale.

MAMBARA J…….

Chigwanda legal practitioners, first-third defendants' legal practitioners
Chiturumani Law Chambers, plaintiff's legal practitioners